

Accordingly, Plaintiff MET served the wrong business at the wrong location, and on the wrong person. Service was improper.

Ms. Abeyta was not authorized to accept service. Here, in its Opposition, Plaintiff MET inaccurately contends that Ms. Abeyta was authorized to accept service on behalf of AAA Payroll Plus, Inc. In order to reach its conclusion, MET's Opposition speculates that "Ms. Abeyta is likely an officer and/or director" of AAA Payroll Plus, Inc. (Opp. 2:21.) (Emphasis added.) As noted by Defendant, thereafter, to its credit, Plaintiff MET acknowledged that "Plaintiff lacks direct knowledge" of such fact. Plaintiff MET's comment in its opposition is not a fact.

Here, Defendant did not employ Ms. Kelcie after the business sale and it did not authorize Ms. Abeyta to accept service process. (Brown Decl., ¶ 2, 2:15-18.) Ms. Willoughby-Brown was not informed by Ms. Abeyta that she had received a Summons and Complaint. (Brown Decl., ¶ 4, 3:27-4:5.) It was only after Defendant received the Request for Entry of Default and Default Judgment that Ms. Willoughby-Brown asked Ms. Abeyta, and thereafter was informed that Ms. Abeyta remembered that she received documents and placed them in a folder for Ms. Willoughby-Brown, which Ms. Willoughby-Brown had never seen until then. (Brown Decl., ¶ 4, 3:25-4:1.)

Plaintiff's service of the summons and complaint does not comply with Corporations Code § 1702. As noted by Defendant, in its opposition, Plaintiff MET argues that Defendant's business location was behind a locked gate which prevented service of summons and complaint despite diligent efforts. met thereafter acknowledges that it served such documents to the distinct business entity, AFE, Inc., or AAA Payroll Plus. Corporations Code § 1702 provides

"If an agent for the purpose of service of process ... cannot with reasonable diligence be found at the address designated for personally delivering the process, ... and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand ..., the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service."

Here, Plaintiff MET did not seek the readily available alternative to properly serve Defendant through the Secretary of State. Instead, Plaintiff MET engaged in the fiction of serving the buyer of Defendant's business assets and goodwill – a distinct business entity not authorized by statute or agreement to accept service. Due process is not satisfied by service in the fashion proposed by MET.

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CASE #	CASE NAME	HEARING NAME
CVME2600150	ARMANI VS GREYSTONE REAL ESTATE PARTNERS LLC	DEMURRER

Tentative Ruling: Unopposed Demurrer sustained with 20 days leave to amend.